CITY ATTORNEY'S IMPARTIAL ANALYSIS OF MEASURE Q

The proposed Measure seeks to convert the position of Fairfield City Clerk from an elective to an appointive office.

The City Clerk is responsible for overseeing vital municipal functions. In the City of Fairfield, the City Clerk is currently elected to serve a four-year term. The City Council has directed that Measure Q be placed on the ballot to provide an opportunity for voters to decide whether the City Clerk should instead be an appointed position. A majority of California cities have an appointed City Clerk who is either hired by the City Manager or appointed by the City Council. This Measure allows the City Council to delegate its appointment authority to the City Manager.

This Measure will have no impact upon the current term of the incumbent City Clerk. The incumbent City Clerk was last elected in 2024 and would be permitted to stay in office until the end of her current term in 2028. At the conclusion of her term, the incumbent City Clerk would be eligible for appointment to the same office. If the incumbent City Clerk resigns before the end of her term, a replacement would also be appointed. An appointed City Clerk would not be required to be a resident or elector of the City, and will receive compensation in a fixed amount established by the City Council.

This Measure was placed on the ballot by the Fairfield City Council and requires the approval of a majority of voters. A "yes" vote on this Measure amends Chapter 2 of the City Municipal Code in order to make the City Clerk position appointive, meaning no one will have to run for office for the City Clerk position. A "no" vote on this Measure means the City Clerk position will remain elected.

The above statement is an impartial analysis of Measure Q. If you desire copies of the Measure and the proposed Municipal Code amendment, please call the City Clerk's office at (707) 428-7384, and copies will be mailed at no cost to you. Copies can also be obtained from the City Clerk's office at City Hall, 1000 Webster Street, Fairfield, CA 94533, or the City's website at https://www.fairfield.ca.gov/.

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David Lim

City Attorney

City of Fairfield